



SPONSOR: Rep. D. Short & Rep. Dukes & Sen. Pettyjohn
Reps. Hilovsky, Morris; Sens. Hocker, Huxtable, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 90

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO SUSSEX COUNTY VOCATIONAL-TECHNICAL HIGH SCHOOL.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 2601, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 2601. Power of county vocational-technical high school districts and county vocational-technical school districts
4 to levy taxes for school purposes [Effective until fulfillment of 80 Del. Laws, c. 19, § 2].

5 (a) Any county vocational-technical high school district or county vocational-technical center district may, in
6 addition to the amounts appropriated to it by the General Assembly, levy and collect additional taxes for school purposes
7 upon the assessed value of real estate in such district, as determined and fixed for county taxation purposes. ~~purposes,~~
8 ~~however:~~

9 ~~(1) The amount to be raised by taxation for current expense must not exceed 26.50 cents on each \$100 value~~
10 ~~of real property in Sussex County for the tax year 2021, 27.50 cents for tax year 2022, 28.50 cents for tax year 2023,~~
11 ~~29.50 cents for tax year 2024 and all years thereafter.~~

12 Section 2. Amend § 2605, Title 14 of the Delaware Code by making deletions as shown by strike through and
13 insertions as shown by underline as follows:

14 § 2605. Enrollment in the Sussex County Vocational-Technical High School District.

15 ~~(a) Enrollment for the Sussex County Vocational-Technical High School District must not exceed 1,300 students~~
16 ~~in grades 9-12 for school year 2021-2022, 1,350 students for school year 2022-2023, 1,400 students for school year 2023-~~
17 ~~2024 and 1,450 students for school year 2024-2025 and all years thereafter.~~

18 ~~(a)(b)~~ For any school year in which the number of applications for admission exceeds ~~the number of students to be~~
19 ~~enrolled, the District's allowed student enrollment capacity,~~ the Sussex County Vocational-Technical High School District
20 shall conduct a random lottery admitting student number "1" and progressing consecutively thereafter until the total number
21 of students to be admitted has been reached. ~~However, the number of students admitted from any 1 Sussex County school~~

22 district shall not exceed the Sussex County Vocational-Technical High School District's enrollment, outlined in subsection
23 (a) of this section, as a percentage of Sussex County's total eighth-grade enrollment.

24 (b)(e) The Sussex County Vocational-Technical High School District may only provide preferences in student
25 admissions to any of the following:

26 (1) Siblings of students currently enrolled at the school.

27 (2) Children of persons employed on a permanent basis for at least 30.0 hours per week during the school year
28 by the Sussex County Vocational-Technical High School District.

29 (c)(d) The Sussex County Vocational-Technical High School District is prohibited from denying any applicant for
30 enrollment whose GPA falls below the 70th percentile or who has failed any eighth grade course from its lottery for
31 admission, unless the student does not remain academically eligible for promotion according to the standards set by the
32 Department of Education.

33 (d)(e) Except in cases of expulsion subject to the provisions of § 4130 of this title, the Sussex County Vocational-
34 Technical High School District shall be prohibited from removing a student from its enrollment for disciplinary reasons
35 without the consent of the student's parents/guardians and the student's school district of residence.

SYNOPSIS

This bill removes the current specific tax rate and enrollment limitations placed on Sussex County Vocational-
Technical High School District.

Future tax rates shall be determined by the Sussex County Vocational-Technical High School District.

The enrollment capacity limitations shall be established by the Certificate of Need determined by the Delaware
Department of Education.